

		No later than five (5) court days before the continued hearing, Defendants may file and serve a responsive brief that addresses any new arguments or evidence submitted in Moving Parties' supplemental filing(s). Moving Parties to give notice.
5	Betancourt v. Airstream, Inc.	Defendant Airstream, Inc. moves to compel Plaintiffs Mark A. Betancourt and Gail Ann Ortiz to provide further responses to Defendant's first set of form interrogatories, special interrogatories, and requests for production of documents. For the following reasons, the motion is DENIED. Both Defendant and Plaintiffs' request for monetary sanctions are DENIED. "[A]ny party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action." (Code Civ. Proc. § 2024.020(a).) The date this matter was initially set for trial was February 9, 2026. (ROA 43.) Thus, the last day for discovery motions to be heard was January 26, 2026. On January 14, 2026, Defendant moved ex parte for an order continuing trial. The Court's Minute Order on that ex parte application states in part: The Trial is continued to 08/17/2026 at 09:00 AM in Compliance with Local Rule 317 is required. There is no order to continue the deadlines. In other words, the court's order continuing the trial to August 17, 2026 did <i>not</i> extend the discovery cutoff. "Except as provided in Section 2024.050, a continuance or postponement of the trial date does not operate to reopen discovery proceedings." Code Civ. Proc. § 2024.020(b). "Parties to an action may with the consent of any party affected by it, enter into an agreement to extend the time for the completion of discovery proceedings or for the hearing of motions concerning discovery, or to reopen discovery after a new date for trial of the action has been set. This agreement may be informal, but it shall be confirmed in a writing that specifies the extended date...." (Code Civ. Proc. §2024.060.) Defendant has presented no evidence of any agreement to extend the discovery motion cutoff date. In short, Defendant's motions are untimely. In the absence of a motion to reopen discovery – which Defendant has not filed – the court cannot grant the motion. One such court granted a motion to compel after the discovery cutoff had expired. "By simply hearing the motion to compel without first deciding whether discovery should be reopened for that purpose under

		all of the relevant circumstances, the trial court ‘transgresse[d] the confines of the applicable principles of law’ [Citation] and thereby abused its discretion.” (<i>Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.</i> (2008) 165 Cal.App.4th 1568, 1588 (reversing order granting untimely motion to compel).) In its Reply, Defendant quotes <i>Pelton-Shepherd Industries</i>, “But the fact that a party does not have a <i>right</i> to have a discovery motion heard after the discovery motion cutoff date does not mean the court has no <i>power</i> to hear it, or that the court errs in hearing it.” (<i>Pelton-Shepherd Industries, supra</i>, 165 Cal.App.4th at 1586.) However, the Court of Appeal in that matter held that a party must file a motion to reopen discovery or have a motion heard after the discovery cutoff. (Ibid.) Indeed, the Court of Appeal held that the trial court abused its discretion by hearing the motion to compel without first reopening discovery. (Id. at 1587.) Here, the Court already denied Defendant’s first request to have these discovery motions heard after the discovery cutoff, and Defendant has not filed a motion to reopen discovery. Accordingly, the motions are denied. Pursuant to Code Civ. Proc. §§ 2030.300 and 2031.310, the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to an interrogatory or inspection demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. The motions were made with substantial justification, as Plaintiffs have asserted boilerplate objections that largely lack merit. Both Defendant and Plaintiffs’ request for monetary sanctions are denied. Defendant shall give notice of this ruling.
6	Lampley v. Hermosa 2019 LP	Jamala Y. Garcia’s motion to substitute Ms. Garcia as Successor in Interest in place of Plaintiff El Veasta Lampley is CONTINUED TO January 21, 2027, at 1:30 p.m. in this department for supplemental briefing, as discussed below. <u>Legal Authority</u> “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (Code Civ. Proc., § 377.31.) “Decedent’s successor-in-interest” means “the beneficiary of the decedent’s estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.” (Code Civ. Proc., § 377.11.)